

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 21-09

**HAPAG-LLOYD, A.G. and HAPAG-LLOYD (AMERICA) LLC. —POSSIBLE
VIOLATIONS OF 46 U.S.C. § 41102(c)**

PROTECTIVE ORDER

The undersigned parties (each a "Party," and collectively, the "Parties"), by their counsel, hereby agree that in connection with this proceeding, if there is an occasion to disclose information deemed by any Party to constitute confidential or proprietary information, the following procedures shall be employed and the following restrictions shall govern:

1. Any testimony, information, documents or things, including without limitation, interrogatories, answers to interrogatories, deposition transcripts and responses to requests for admission ("Discovery Material"), which any Party reasonably believes is confidential or proprietary or contains confidential or proprietary information (hereinafter "Confidential Material"), may be marked or otherwise designated as "CONFIDENTIAL."

2. Each Party may designate, by marking "CONFIDENTIAL" or otherwise, any Confidential Material which, in the good faith and judgment of such Party: (a) contains trade secrets or confidential or proprietary research, development, marketing, commercial or financial information, including but not limited to information regarding customers or clients, their financial status or activities, the confidentiality of which it is reasonably necessary that the Party maintain for bona fide business or privacy reasons; or (b) contains information that should otherwise be subject to confidential treatment. If the producing Party designates Discovery

Material as "CONFIDENTIAL" after copies thereof have been delivered to the receiving Party, the undesignated delivered copies thereafter shall be treated as if they were so designated.

3. A Party may designate information disclosed at any deposition taken in this proceeding as confidential by notifying all Parties in writing within fifteen (15) days of receipt of the transcript of the specific pages and lines of the transcript, or the specific deposition exhibits which are Confidential Material. Each Party shall attach a copy of such written statement to the face of the transcript and each copy thereof in their possession, custody or control. The entire content of any deposition transcript shall be treated as Confidential Material for a period of 15 days after a full and complete transcript of said deposition is available, regardless of whether any Party has so designated the transcript.

4. Confidential Material shall be disclosed only to:

(a) the Administrative Law Judge ("ALJ"), or the Federal Maritime Commission ("FMC") including court reporters, stenographic reporters, court personnel and mediators;

(b) counsel for the Parties (including partners and associates), paralegals and support staff of said counsel who are acting in connection with the prosecution or defense of this proceeding, and outside document copying services and/or document coding or computerization services retained by such counsel in connection with this proceeding;

(c) the Parties, including but not limited to their officers, directors and employees; and

(d) court reporters engaged in connection with depositions in this proceeding.

5. All Confidential Material which is to be filed with the ALJ or FMC, or materials containing, reproducing, incorporating or paraphrasing Confidential Material shall be filed in sealed envelopes or other appropriately sealed containers on which shall be endorsed the caption of this proceeding, indication of the nature of the contents of such envelope or container, the words "CONFIDENTIAL" and a statement to the effect that: "This envelope contains confidential and proprietary information and is neither to be opened nor the contents thereof displayed or revealed to anyone except pursuant to an order of the ALJ or by consent of the parties." If filings are made with the ALJ or FMC electronically, the procedures in 46 C.F.R. §502.5 shall be followed to preserve the confidentiality of Confidential Material.

6. If at any time a Party objects to a designation of Confidential Material as "CONFIDENTIAL," the objecting Party shall notify the designating Party in writing. The notice shall identify the material or information in question and set forth in reasonable detail why the material is not entitled to "CONFIDENTIAL" treatment. If the matter cannot be resolved after good faith negotiations, the objecting Party shall apply to the ALJ for a ruling as to the confidential nature of the Discovery Material within five (5) days of receiving the notice of objection. The Discovery Material or information shall be treated as "CONFIDENTIAL" until the ALJ rules on the application.

7. All Confidential Material shall be used only by authorized persons as defined in this Protective Order and only for the prosecution or defense of this proceeding and not for any business or other purpose whatsoever.

8. Nothing herein shall preclude a Party from using or disclosing for any purpose any Confidential Material produced by that Party.

9. The provisions of this Protective Order insofar as they restrict the communication and use of Discovery Material and information designated as "CONFIDENTIAL" shall continue to be binding after the conclusion of this proceeding, unless otherwise permitted by written agreement of the producing Party or further order of the ALJ.

10. The Parties have agreed to the entry of this Protective Order to facilitate and expedite discovery; nothing contained herein shall prevent any Party from seeking modification of this Protective Order or from objecting to discovery which it believes to be otherwise improper.

11. The Parties acknowledge that the mere fact that documents or information are designated as "CONFIDENTIAL" by the producing Party creates no presumption that: (a) the documents or information so designated have been rightfully designated as such; (b) the producing Party has any proprietary or protectable interest in said documents or information; or (c) the producing Party is rightfully in possession of or has rightfully received said documents or information.

12. The Parties further acknowledge that the receiving Party's failure to file or delay in filing an application with the ALJ petition challenging the designation of documents or information as "CONFIDENTIAL" shall create no presumption that: (a) the documents or information were rightfully so designated; (b) the producing Party has any proprietary or protectable interest in said documents or information; or (c) the producing Party is in rightful possession of or has rightfully received said documents or information.

13. Nothing contained herein, constitutes or should be construed as a waiver by any Party of the attorney-client privilege or work-product doctrine.

AGREED TO:

By: _____

Wayne R. Rohde
Joshua P. Stein
COZEN O'CONNOR
1200 19th Street NW
Suite 300
Washington, DC 20573

Counsel for Respondents Hapag-Lloyd AG
and Hapag-Lloyd (America) LLC

By: **MARYANNE MUNDY** Digitally signed by
MARYANNE MUNDY
Date: 2022.02.14
09:45:16 -05'00'

Maryanne Mundy
Serena Tang
Bureau of Enforcement
Federal Maritime Commission
800 North Capitol Street NW
Washington, DC 20573

IT IS SO ORDERED on this ___ day February, 2022.

Erin M. Wirth,
Chief Administrative Law Judge